MHONDORO NGEZI RURAL DISTRICT COUNCIL
versus
ZIMBABWE RURAL DISTRICT WORKERS UNION
and
LINNET MVUDUDU N.O
and
OWEN HUNGWE N.O.

HIGH COURT OF ZIMBABWE
MUSITHU J
HARARE, 17 September 2025, 24 October 2025 & 1 July 2026

Opposed Application- Jurisdiction of the High Court to set aside a Labour Arbitral Award

T. Magogo, for the applicant
I Gonese, for the first respondent

MUSITHU J:

[1] This application for the setting aside of an arbitral award was filed in terms of Article 34 as read with Article 16 of the Model Law in the Arbitration Act.[1] The applicant sought an order setting aside an arbitral award issued by the second and third respondents on 31 December 2024 and released to the parties on 3 March 2025. The relief was sought on the basis that the award was contrary to public policy and the arbitrators lacked jurisdiction because the dispute was referred to voluntary arbitration without the agreement contemplated by s 93(5)(b) of the Labour Act[2]. The relief sought was couched in the following terms:

"**IT IS ORDERED THAT**

1. The instant application succeeds.
2. The arbitral award rendered by the 2nd and 3rd Respondents dated 31 December 2024 be and is hereby set aside.
3. The 1st-3rd Respondents shall pay the costs of this application on the legal practitioner to client scale."

<u>Factual Background and the Applicant's Case</u>

[2] The matter has its genesis in a collective bargaining dispute concerning a salary increase and employment benefits for employees represented by the first respondent. Following unsuccessful conciliation proceedings before the National Employment Council for the Rural District Councils (hereinafter referred to as NEC for Rural District Councils), the dispute was

[1] [*Chapter 7:15*]
[2] [*Chapter 28:01*]

referred to arbitration. The applicant maintained that it never consented to such referral. It averred that it consistently objected to the jurisdiction of the arbitral tribunal. Notwithstanding those objections, the tribunal proceeded to determine the dispute and ultimately granted the relief sought by the first respondent.

[4] The applicant is a rural district council established in terms of the Rural District Councils Act.[3] The first respondent is the Zimbabwe Rural District Council Workers Union, a duly registered trade Union. The second respondent, Linnet Mvududu and third respondent, Owen Hungwe were both cited in their official capacities as the appointed arbitrators.

[5] The applicant's founding affidavit was deposed to by one Itai Mawonde in his capacity as its Chief Executive Officer. The applicant described its relationship with the first respondent as that of employer and employee parties to the NEC for Rural District Councils. After unsuccessful collective bargaining negotiations between the parties, a certificate of no settlement was issued. The dispute was thereafter referred to voluntary arbitration notwithstanding the absence of the applicant's consent. The terms of reference were allegedly provided by the first respondent, and these were as follows:

(a) whether or not 65% salary adjustment effective 1 July 2022 is reasonable and affordable if so or if not, the arbitrator to determine the way forward.
(b) Whether or not 50USD housing allowance per month effective 1 July 2023 is reasonable and affordable if so or if not, the arbitrator to determine the way forward.

The applicant also averred that the first respondent appointed the arbitrators. The applicant raised an objection in terms of Article 16 of the Model Law to the absence of jurisdiction on the part of the arbitrators and the absence of an arbitration agreement. The objection was opposed by the first respondent. The arbitrators reserved their ruling.

[6] On 23 August 2024, the arbitrators invited the parties for and communicated their intention to proceed to hear the merits of the matter before determining the preliminary objections. The applicant objected to such a course and the matter was postponed to 28 November 2024. On the said date, the arbitrators dismissed the preliminary objections on the basis that they lacked merit. No reasons were issued for the decision.

[7] The matter was set down for hearing on 20 December 2024. A further objection was taken that the arbitrators could not continue presiding over the matter because their certificates of appointment had expired. The objection was also dismissed without reasons. The applicant requested for reasons for all their determinations as it was minded approaching the Labour

[3] [*Chapter 29:13*]

Court on review. The applicant also informed the arbitrators that it would not be responding to the merits of the matter before reasons for the preliminary objections were rendered.

[8] The applicant averred that it declined to address the merits of the dispute pending receipt of those reasons. It filed an application for review to the labour court under LCH 1319/24 challenging, *inter alia*, the refusal to issue reasons for the preliminary determinations. The court declined to determine the matter without reasons and the matter was removed from the roll to enable the applicant to *subpoena* the production of the reasons for the preliminary determinations. The reasons were only availed to the parties on 3 March 2025. After the reasons were availed that is when the applicant became aware that the arbitrators had proceeded to deal with the matter and granted the award as sought by the first respondent. The arbitrators had treated the applicant's failure to file a statement in defence as an admission of the first respondent's claim.

[9] The arbitral award was impugned on public policy grounds because of the following procedural irregularities. Firstly, it was averred that the award failed to state the place of arbitration as required by Art 31(3) of the Model Law. It was a peremptory requirement for an award to state the place of arbitration. The second and third respondents' failure to comply with statutory provision was fatal to the proceedings and contrary to public policy. The second point was that there was no arbitration agreement by the parties to refer the matter to arbitration. Voluntary arbitration was based on voluntary submission by the parties to the process of arbitration. The arbitrators did not obtain a mandate from the parties to arbitrate as was required in voluntary arbitrations.

[10] The third point was that the arbitrators' certificates had expired. Arbitrators were appointed in terms of s 98(6) of the Labour Act. Certificates of appointment were regulated by the Labour (Arbitrators) Regulations, 2012 published in SI 173of 2012. The certificates were valid for one year. In terms of s 7(6) the arbitrators had three months to finalise pending matters once the certificates expired. The arbitrators certificates expired on 4 June 2024. The present award was issued on 3 March 2025, even though it was properly finalised on 31 December 2024. Either date was outside the three months period which expired on 4 September 2024. It was against public policy for the arbitrators to proceed to determine the matter after their certificates had expired.

[11] The fourth point was concerned with the withholding of the award. It was averred that although the award was dated 31 December 2024, it was withheld from the parties and only

availed after a subpoena had been issued on 3 March 2025. That act was contrary to public policy.

[12] The fifth point was concerned with the effect of the failure to communicate a statement in defence which should not have been treated as an admission of the first respondent's allegations. Requiring reasons for a preliminary award on jurisdiction was not sufficient cause for a default since the applicant did not want to be construed as having acquiesced to the jurisdiction of the arbitrators. It was further averred that the arbitrators conduct of construing the applicant's failure to communicate a statement in defence was contrary to article 25(b) of the Model Law.

[13] As regards the merits, the applicant averred that the award granted a 65% salary increase together with a housing allowance of US$50 and a transport allowance of US$60 was not supported by evidence to justify such an award. The applicant maintained that the award was founded upon broad and unsubstantiated assertions relating to industry standards, inflation, cost of living increases and the applicant's financial position without any evidential basis having been analysed.

[14] The applicant averred that it was on the basis of the foregoing that the award was contrary to public policy. The applicant accordingly sought an order setting aside the arbitral award together with punitive costs against the respondents. In the alternative, it sought the setting aside of the arbitral award on the basis that there was no valid arbitration agreement and that the arbitrators lacked jurisdiction to deal with the matter.

The First Respondent Case

[15] The first respondent's opposing affidavit raised several preliminary objections at the outset. The first point was that this court lacked jurisdiction to entertain the dispute on the basis that the issues raised fell within the exclusive jurisdiction of the Labour Court. The second point was that the matter was barred by the doctrine of *lis pendes* as there were proceedings already pending before the Labour Court involving the same parties. The first respondent pointed to appeal and review proceedings instituted by the applicant in the Labour Court in relation to the arbitral proceedings that are the subject matter of the present application. The third point concerned the authority of the deponent to the applicant's founding affidavit. I shall relate to these latter in the judgment.

[16] On the merits, the first respondent averred that the present application was incompetent. It averred that the award being sought to be set aside was being challenged on the ground of lack of jurisdiction which constituted review grounds falling within the exclusive jurisdiction

of the Labour Court. The respondent maintained that any challenge to a labour-related arbitral award ought properly to be pursued through review proceedings before the Labour Court. The first respondent also denied the applicant's allegation that the arbitrators lacked jurisdiction. It maintained that they possessed the requisite authority to determine the dispute. Any challenge to the tribunal's jurisdiction was a matter that should properly be pursued through review proceedings before the Labour Court.

[17] The first respondent denied that the applicant was denied an opportunity to be heard. It averred that the conduct of the applicant's representatives during the arbitration hearing was deplorable. After the dismissal of the preliminary objections, the applicant's legal practitioners elected not to participate further in the proceedings and declined to make submissions on the merits. The respondent averred that the proceedings became effectively unopposed because of the applicant's own conduct.

[18] Regarding the release of the award, the first respondent denied that the award was only availed in March 2025. It averred that the award was ready as far back as 31 December 2024 and that the parties were advised that it would be released upon payment of the fees. The applicant failed to make the necessary payment and only obtained the award after a subpoena was issued in separate Labour Court proceedings. The first respondent further averred that the applicant's complaint concerning the way the arbitration proceedings were conducted amounted to allegations of procedural irregularity. Such complaint constituted a ground for review which could only be determined by the Labour Court.

[19] Concerning the applicant's alternative claim, the respondent averred that the claim was in essence, a jurisdictional issue which could be determined by the Labour Court. According to the first respondent, the same issue had been raised by the applicant in the review proceedings filed under LCH 1319/24. The matter was removed from the roll to enable the applicant to file relevant documents which now form part of the record in the current application. The respondent also averred that, despite having knowledge of the ruling as early as 27 December 2024, the applicant chose to seek recourse before the Labour Court and not this court. This court therefore lacked jurisdiction to entertain the matter.

[20] The first respondent further averred that the applicant participated in the arbitral proceedings under protest but nevertheless failed to appoint an arbitrator despite attending the proceedings and making submissions before the tribunal. It was contended that the applicant thereby tacitly waived its right to appoint an arbitrator. The first respondent also averred that the terms of reference were properly formulated and referred to the parties, but despite being

served and invited to make any additions, the applicant still refused to cooperate. The first respondent denied that the award was unjustified. It averred that the applicant failed to provide any financial evidence demonstrating an inability to meet the salary increase.

[21] The first respondent maintained that the issues raised by the applicant related to alleged procedural irregularities rather than any public policy violations. The first respondent also averred that the alleged infractions were insufficient to warrant the setting aside of the arbitral award. The first respondent further averred that the present application constituted an abuse of court process. The applicant approached this court for the setting aside of the award, and in doing so, it relied on provisions of the Labour Act which expressly provided that any challenges relating to jurisdiction and authority were matters to be determined through review proceedings before the Labour Court. The first respondent also denied that the arbitrators' certificates were confined to a three-month period and maintained that the arbitration proceedings were conducted properly.

[22] Further according to the first respondent, the applicant failed to place evidence before the tribunal demonstrating its inability to sustain the salary increase. Having elected not to participate in the proceedings, the applicant could not now seek a rehearing of the matter under the guise of an application to set aside the award. The application was in substance one for review falling within the exclusive jurisdiction of the Labour Court. The respondent sought a punitive order of costs against the applicant, arguing that the present proceedings constituted an abuse of court process.

The Applicant's Answering Affidavit

[23] In its answering affidavit, the applicant raised a preliminary objection regarding the validity of the notice of opposition. It averred that although the notice of opposition was filed on 16 April 2025, the opposing affidavit and the supporting affidavit were only commissioned on 18 April 2025. On that basis, both the opposition and the supporting affidavit were irregular and liable to be struck out.

[24] The applicant further challenged the supporting affidavit filed by a Mr Nhete. It averred that it was irregular for a self confessed officer of the applicant who agreed with the averments of the applicant to pray for the dismissal of the applicant's application. It was irregular for an affidavit to simultaneously support both the applicant and first respondent's cases in one breath. The affidavit had to be expunged from the record. The applicant also challenged Mr Gumbi's competence to depose to matters relating to the arbitral proceedings.

It averred that Mr Gumbi had no personal knowledge of the arbitral proceedings, therefore, his averments constituted hearsay evidence and ought to be expunged from the record.

[25] Regarding the defence of *lis pendens*, the applicant denied that that the defence was available to the first respondent. It averred that the Labour Court proceedings referred to had been withdrawn and accordingly could not sustain the preliminary objection. The applicant averred that the Labour Court had no jurisdiction in matters of this nature. The applicant also denied that it had waived its right to appoint an arbitrator, stating that its objections to the arbitral process had been consistently maintained throughout. It also denied that the present proceedings amounted to an abuse of court process.

[26] The applicant further averred that Art 16(1) of the Model Law provided the exclusive remedy for challenging a ruling on jurisdiction in voluntary arbitration. The Labour Court lacked jurisdiction to determine such a challenge. The applicant further maintained that Mr Gumbi was unable to testify directly on events that occurred before the tribunal because he did not attend the arbitral proceedings.

[27] Regarding the availability of the award and the issue of arbitral costs, the applicant denied that the award had been ready for collection by December 2024 or that its release was delayed by non-payment of costs. It averred that no demand for arbitral fees had been made and maintained that the release of an arbitral award could not be lawfully withheld on account of unpaid costs.

The submissions

[28] At the commencement of the hearing, the parties agreed that the court should first determine the preliminary objection concerning the validity of the first respondent's opposing affidavit and the supporting affidavit accompanying it. Mr *Gonese* appearing for the first respondent insisted that both affidavits were properly before the court, while Mr *Magogo* for the applicant held argued that there was no opposition before the court. At the conclusion of their oral submissions on the point, counsel requested for time to file written submissions to augment their oral submissions. The matter was postponed to 24 October 2025 to allow counsel to file written submissions.

[29] At the resumption of the hearing, both counsels agreed to abandon the preliminary points concerning the validity of the opposing affidavit and its supporting affidavit, as well as the validity of the applicant's founding affidavit. Also abandoned by the first respondent's counsel was the point on *lis pendens*. The point on absence of jurisdiction on the part of this court was however being persisted with. The court shall dispose of this point first.

Whether the High Court has jurisdiction to hear the application

[30] Mr *Gonese* submitted that s 2(3) of the Labour Act, reflected the intention of the legislature that where there was any inconsistency between the Labour Act and the Arbitration Act the provisions of the Labour Act prevailed. In support of that submission counsel cited the case of *Samudzimu v Dairibord Holdings Ltd*[4]. Counsel further relied on *Nhari v Mugabe & Ors*[5] and *TN Harlequin Luxaire v Masvimbo*[6] for the proposition that the jurisdiction of the High Court could not be invoked where the Constitution had established specialised courts with exclusive jurisdiction in a particular field of law.

[31] *Mr Gonese* further submitted that the Labour Court had clearly defined jurisdiction over appeals and reviews involving labour matters and those arising from arbitral proceedings. Such jurisdiction was conferred by sections 89 and 92EE of the Labour Act. Absence of jurisdiction on the part of arbitrators was specifically catered for under s 92EE(1)(c) of the said Act. Mr *Gonese* further submitted that the approach urged upon the court by the applicant to invoke provisions of the Arbitration Act presented a classic case of conflict which had to be resolved by reference to the Labour Act.

[32] *Mr Gonese* further submitted that the case of *Zimbabwe Educational Scientific Social and Cultural Workers' Union v Welfare Educational Institutions Employers' Association*[7], referred to in the applicant's heads of argument was distinguishable from the present proceedings for two reasons. Firstly, there was no written agreement between the parties in which they agreed that there would be no appeal against the arbitral award and secondly because the arbitration proceedings in the present proceedings were challenged by the applicant on the basis that there was no consent. It followed that the proceedings were outside the ambit of voluntary arbitration and therefore the cited authority was not applicable. Counsel further submitted that s 92EE existed in order to allow the Labour Court to hear reviews and appeals. The applicant was therefore forum shopping in approaching the High Court.

[33] In response, *Mr Magogo* submitted that in determining the issue of jurisdiction, the court should relate to the matter by applying s 98 (2) of the Labour Court Act which provides that the Arbitration Act shall apply to a dispute referred to compulsory arbitration. According to

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[4] HH 204/10
[5] SC 161/20
[6] SC 84/22
[7] 2013 (1) ZLR 187 (SC)

counsel, the applicant petitioned the court in terms of Article 34 as read with Article 16 of the Model Law to the Arbitration Act. The petition impugned an award stemming from voluntary arbitration. The Labour Court had no jurisdictional competence to adjudicate a matter relating to the substantive propriety of an award. Counsel referred the court to the case of *Zimbabwe Educational Scientific, Social and Cultural Workers Union v Welfare Educational Institutions' Employers' Association (supra)* to support his point, in which the court made the point that the voluntary arbitration proceedings cannot be subjected to either an appeal or review under the Labour Act. Such proceedings were governed by the Arbitration Act.

[34] Counsel submitted that the authorities relied upon by the first respondent were inapplicable, as they dealt with factual circumstances distinguishable from those pleaded in the applicant's founding affidavit. He maintained that challenges arising from voluntary arbitration fall to be determined under the Arbitration Act.

[35] *Mr Magogo* submitted that voluntary arbitration was predicated upon consensus to subject dispute for determination by a third party. Counsel submitted that the whole essence of voluntary arbitration was lost when there was no consensus to agree to voluntary arbitration. In support of that submission counsel placed reliance on Art(s) 4(1) and 7(1) of the arbitration Act, which according to him, underscore the principle that the foundation of arbitration was an agreement.

Issues for determination

[36] Two principal issues fall for determination.

- whether this court is clothed with jurisdiction to entertain the present application under Arts 16 and 34 of the Model Law, regard being had to the provisions of ss 92EE, 93 and 98 of the Labour Act.
- Should that issue be answered in the affirmative, the second issue is whether the applicant has established any of the grounds recognised under Art 34 of the Model Law to warrant the setting aside of the impugned arbitral award.

The Analysis

[37] The issues arising in this application are closely interrelated and are best determined by first identifying the juridical nature of the arbitral proceedings from which the impugned award emanated. Put it differently, before considering the applicability of Art(s) 16 and 34 of the Model Law, it is necessary to answer a critical question, namely: what type of arbitration gave rise to the impugned award? This question is critical because it helps unpack the issue of whether the jurisdiction of this court was properly engaged in this matter.

[38] The applicant's case, as pleaded in the founding affidavit, was that after the issuance of a certificate of no settlement, the dispute was referred to voluntary arbitration in terms of s 93(5)(b) of the Labour Act notwithstanding its refusal to consent to such referral. The applicant consistently maintained that there was no agreement to arbitrate and that the arbitrators therefore lacked jurisdiction. It was on that basis that the applicant sought to invoke Art(s) 16 and 34 of the Model Law.

[39] *Mr Gonese* submitted that the applicant's complaints fell within the review jurisdiction of the Labour Court under s 92EE of the Labour Act. *Mr Magogo,* on the other hand, maintained that the applicant was entitled to approach this Court under Art(s) 16 and 34 of the Model Law. In stressing the point, he also referred to the dictum in *Zimbabwe Educational Scientific, Social and Cultural Workers Union v Welfare Educational Institutions' Employers' Association (supra).*

[40] In the court's view, the resolution of that apparent conflict depends upon the proper characterisation of the arbitral proceedings from which the impugned award emanated. The characterisation of the arbitral proceedings determines the statutory framework governing the dispute, the remedies available to an aggrieved party and, ultimately, the question whether this court was clothed with jurisdiction to entertain the present application. It also provides the proper context within which the interplay between ss 92EE, 93 and 98 of the Labour Act and Articles 16 and 34 of the Model Law must be considered.

[41] In determining jurisdiction, a court is concerned with the substance of the proceedings rather than the label attached to them. The court must therefore identify the true nature of the dispute and the statutory source of the arbitral proceedings. The starting point is therefore not whether the arbitrators correctly assumed jurisdiction, nor whether the applicant had established any of the grounds for setting aside an arbitral award under Article 34. Rather, the enquiry is whether, on the applicant's own pleaded case, the referral fell under s 93(5)(a), s 93(5)(b) or s 93(5)(c) of the Labour Act.

[42] Section 93(5) of the Labour Act establishes the mechanisms through which a dispute may proceed after a labour officer has issued a certificate of no settlement. It provides that;

> "(5) After a labour officer has issued a certificate of no settlement, the labour officer, upon consulting any labour officer who is senior to him or her and to whom he or she is responsible in the area in which he or she attempted to settle the dispute or unfair labour practice—
> (a) shall refer the dispute to compulsory arbitration if the dispute is a dispute of interest and the parties are engaged in an essential service; or
> (b) may, with the agreement of the parties, refer the dispute or unfair labour practice to voluntary arbitration; or

> (c) may refer the dispute or unfair labour practice to compulsory arbitration if the dispute or unfair labour practice is a dispute of right;
> and the provisions of section 98 shall apply to such reference to compulsory arbitration."

[43] Section 93(5) creates three mutually exclusive statutory routes by which a labour dispute may proceed after conciliation has failed. Which route is engaged, depends upon the juridical nature of the dispute. It is therefore necessary to consider each in turn. Paragraph (a) deals with disputes of interest involving parties engaged in an essential service. Such disputes must be referred to compulsory arbitration where two jurisdictional facts are present, namely that the dispute is one of interest and that the parties are engaged in an essential service. Significantly, the subsection expressly provides that the provisions of s 98 of the Labour Act apply to such compulsory arbitration.

[44] A proper reading of s93(5) shows that paragraph (b) applies to disputes of interest that do not fall under essential services. Such disputes may be referred to voluntary arbitration with the agreement of the parties. Unlike paragraph (a), the statutory authority to refer the dispute to arbitration is predicated upon the agreement of the parties. The existence or otherwise of such agreement therefore becomes the statutory condition upon which the validity of the referral depends.

[45] Paragraph (c) regulates a different class of disputes altogether. It empowers the labour officer to refer a dispute or unfair labour practice to compulsory arbitration where the dispute is one of right. The jurisdiction to refer a dispute under this paragraph is therefore engaged only where the dispute concerns the determination or enforcement of existing legal rights and obligations. As with para (a), the referral is one to compulsory arbitration and attracts the application of s 98 of the Labour Act.

[46] Although, as will become apparent, the dispute before the Court was one of interest, there was no factual or legal basis upon which it could be concluded that the parties were engaged in an essential service within the contemplation of the Act. Section 102 defines an "essential service" as follows:

> "essential service' means any service—
> (a) the interruption of which endangers immediately the life, personal safety or health of the whole or any part of the public; and
> (b) that is declared by notice in the Gazette made by the Minister, after consultation with the appropriate advisory council, if any, appointed in terms of section nineteen, to be an essential service"

The definition is restrictive. It is not every public service or statutory function that qualifies as an essential service. The decisive consideration is whether the interruption of the service would pose an immediate danger to life, personal safety or public health.

[47] Nothing in the founding affidavit, the opposing papers or the record suggests that the applicant fell within that statutory definition. The jurisdictional facts necessary to invoke s 93(5)(a) were therefore absent. It follows that the dispute could not lawfully have been referred to compulsory arbitration under that provision.

[48] In the court's view, s 93(5)(c) was also not engaged. I say so because the provision authorises the referral of a dispute to compulsory arbitration where the dispute is one of right. The Labour Act defines a "dispute of right" as:

> "dispute of right' means any dispute involving legal rights and obligations, including any dispute occasioned by an actual or alleged unfair labour practice, a breach or alleged breach of this Act or of any regulations made under this Act, or a breach or alleged breach of any of the terms of a collective bargaining agreement or contract of employment."

[49] The dispute before the Court bears none of the characteristics associated with a dispute of right. This distinction is reinforced by s104(3)(a)(ii) of the Labour Act, which prohibits collective job action where the issue in dispute is a dispute of right. On the other hand, collective job action is preserved by s 104(1) as a mechanism for resolving disputes of interest.

[50] Against that legislative framework, it is necessary to examine how the parties themselves characterised the dispute at the material time. In a letter dated 22 January 2024 addressed to a Mr Ruziwa, the designated agent, National Employment Council for Rural Councils, the applicant expressly stated that:

> "2.1 As the papers filed of record and the previous correspondence would highlight, our client has at all material times objected to **the dispute of interest** being determined in this Tribunal
> 2.2…for a dispute of interest to be referred for voluntary arbitration, the relevant particulars ought to be AGREED…"

Similarly, in its Statement of Defence on Preliminary Points and Objections to Jurisdiction before the arbitral tribunal, the applicant expressly pleaded that:

> "This is a statement of defence which seeks to place on record the objection to the Tribunal's jurisdiction to entertain this matter on the basis that it is purportedly voluntary arbitration. In addition, the dispute at hand being a **dispute of interest, the** tribunal cannot force parties to be heard without consent of both parties."

[51] The applicant therefore consistently characterised the underlying dispute as a dispute of interest. It did not contend that the parties were engaged in an essential service within the meaning of s 93(5)(a), nor did it contend that the dispute was one of right capable of referral

under s 93(5)(c). It follows that the only statutory provision capable of governing the referral was s 93(5)(b), which regulates the voluntary arbitration of disputes of interest.

[52] Once the dispute is properly characterised, the true nature of the applicant's complaint becomes equally apparent. The applicant accepted that the labour officer purported to invoke s 93(5)(b). In my view, its complaint was not directed at the classification of the dispute but at the validity of the referral itself. It contended that the statutory requirement of an agreement between the parties had not been satisfied and that, in the absence of such agreement, the labour officer lacked authority to refer the matter to voluntary arbitration, and the arbitral tribunal consequently lacked jurisdiction.

[53] In my view, that complaint did not alter the legal character of the underlying dispute. Whether or not the statutory precondition for a referral under s 93(5)(b) was satisfied was a question concerning the legality of the labour officer's exercise of the statutory power of referral. It did not alter the juridical character of the underlying dispute, which remained one of interest. The issue raised by the applicant was therefore not the nature of the dispute itself, but whether the referral to voluntary arbitration was lawfully effected and whether the arbitral tribunal consequently assumed jurisdiction.

[54] That conclusion is consistent with the broader statutory scheme established by the Labour Act. Section 93(6) provides that:

> "(6) If, in relation to any dispute—
> (a) after a labour officer has issued a certificate of no settlement in relation to the dispute or unfair labour practice, it is not possible for any reason to refer the dispute or unfair labour practice to compulsory arbitration as provided in subsection (5); or
> (b) a labour officer refuses, for any reason, to issue a certificate of no settlement in relation to any dispute or unfair labour practice after the expiry of the period allowed for conciliation under subsection (3) or any extension of that period under subsection (4);
> any party to the dispute may, in the time and manner prescribed, apply to the Labour Court—
> (i) for the dispute or unfair labour practice to be disposed of in accordance with paragraph (b) of subsection (2) of section eighty-nine, in the case of a dispute of interest; or
> (ii) for an order in terms of paragraph (c) of subsection (2) of section eighty-nine, in the case of a dispute of right."

[55] Section 89, in turn, confers jurisdiction upon the Labour Court to hear applications brought under the Act and, in terms of s 89(1) (d1), *'to exercise the same powers of review as would be exercisable by the High Court in respect of labour matters'.* Read together, those provisions demonstrate the legislature's intention that disputes arising from the statutory dispute-resolution machinery established by the Labour Act should continue to be supervised within that statutory framework.

[56] Having determined that the dispute arose under s 93(5)(b), the next enquiry is whether the applicant's jurisdictional challenge fell for determination by this Court under Art(s) 16 and 34 of the Model Law or by the Labour Court under the Labour Act. *Mr Magogo* submitted that, because there was no agreement to arbitrate, Articles 16 and 34 entitled the applicant to approach this Court directly. *Mr Gonese*, on the other hand, argued that the complaint concerned the jurisdiction of arbitrators acting under the Labour Act and therefore fell squarely within the review jurisdiction conferred upon the Labour Court by s 92EE.

[57] In resolving these competing positions, it is necessary to consider the relevant statutory provisions as a whole. Section 92EE of the Labour Act provides that:

> "92EE Grounds of review by Labour Court
> (1) Subject to this Act and any other law, the grounds on which any proceedings or decision conducted or made in connection with is Act may be brought on review before the Labour Court shall be—
> (a) absence of jurisdiction on the part of the arbitrator or adjudicating authority concerned;
> (b) interest in the cause, bias, malice or corruption on the part of the arbitrator or adjudicating authority concerned:
> (c) gross irregularity in the proceedings or the decision of the arbitrator or adjudicating authority concerned.
> (2) Nothing in subsection (1) shall affect any other law relating to the review of proceedings or decisions of inferior courts, tribunals or authorities."

[58] The significance of that provision lies in the fact that the legislator expressly identified lack of jurisdiction on the part of an arbitrator as a ground for review that fell within the ambit of the review powers of the Labour Court. The applicant's complaint throughout these proceedings was that the arbitrators assumed jurisdiction notwithstanding the absence of the agreement required by s 93(5)(b). Properly analysed, that complaint therefore fell squarely under the purview of s 92EE(1)(a).

[59] The applicant nevertheless relied on Art(s) 16 and 34 of the Model Law to confer jurisdiction upon this Court. That submission requires closer examination.

Art 16 provides that:

> **"Article 16 – Competence of arbitral tribunal to rule on its jurisdiction**
>
> (1) The arbitral tribunal may rule on its own jurisdiction, including any objections with respect to the existence or validity of the arbitration agreement. For that purpose, an arbitration clause which forms part of a contract shall be treated as an agreement independent of the other terms of the contract. A decision by the arbitral tribunal that the contract is null and void shall not entail *ipso jure* the invalidity of the arbitration clause.
> (2) A plea that the arbitral tribunal does not have jurisdiction shall be raised not later than the submission of the statement of defence. A party is not precluded from raising such a plea by the fact that he has appointed, or participated in the appointment of, an arbitrator. A plea that the arbitral tribunal is exceeding the scope of its authority shall be raised as soon as the matter

> alleged to be beyond the scope of its authority is raised during the arbitral proceedings. The arbitral tribunal may, in either case, admit a later plea if it considers the delay justified.
> (3) The arbitral tribunal may rule on a plea referred to in paragraph (2) of this Art either as a preliminary question or in an award on the merits. If the arbitral tribunal rules on such a plea as a preliminary question, any party may request, within thirty days after having received notice of that ruling, the High Court to decide the matter, which decision shall be subject to no appeal; while such a request is pending, the arbitral tribunal may continue the arbitral proceedings and make an award."

[60] Article 16 empowers an arbitral tribunal to make a ruling on its own jurisdiction, including objections concerning the existence or validity of an arbitration agreement, while Article 34 permits the High Court to set aside an arbitral award on grounds specified therein. If those provisions are considered in isolation, they appear to support the applicant's argument. The arbitration in the present matter, however, did not arise from a private commercial agreement. It arose from the statutory sanctioned dispute-resolution machinery established under Part XII of the Labour Act following the issue of a certificate of no settlement. The tribunal therefore derived its authority from the Labour Act.

[61] The relationship between the Labour Act and the Arbitration is governed by s 5 of the Arbitration Act. That provision recognises that where another enactment requires disputes to be determined by arbitration, the Arbitration Act applies, but only subject to the provisions of the enactment creating that arbitration. In the present case, it is s 93 of the Labour Act that brought the dispute within the realm of arbitration. Section 98 therefore regulates the extent to which the Arbitration Act applies to labour arbitration, while ss 89 and 92EE allocate supervisory jurisdiction to the Labour Court. The Arbitration Act therefore operates within, and not independent of the statutory framework established by the Labour Act.

[62] Properly construed, there is no inconsistency between Art 16 and the Labour Act. Article 16 governs the tribunal's competence to determine objections to its own jurisdiction during the arbitral proceedings. The Labour Act, on the other hand, determines which court is vested with supervisory jurisdiction to review those proceedings once they have been conducted. Even if Article 16(3) were capable of being read as conferring jurisdiction upon the High Court, that provision cannot override the specialised review mechanism created by ss 89, 92EE and 98 of the Labour Act, particularly in light of s 2A(3) of the Labour Act, which gives the Labour Act precedence in the event of any inconsistency with another enactment.

[63] *Mr Magogo* relied heavily upon the decision of the Supreme Court in *Zimbabwe Educational, Scientific, Social and Cultural Workers' Union v Welfare Educational Institutions Employers' Association*, wherein Malaba DCJ (as he then was) observed that:

> "Voluntary arbitration proceedings are not subject to either appeal or review under the Labour Act. Voluntary arbitration proceedings are governed by the Arbitration Act [Chapter 7:15]."

[64] That proposition correctly reflected the legislative framework as it existed when that judgment was delivered. The difficulty confronting the applicant, however, is that the Labour Act has since undergone significant amendments. By Act 5 of 2015, the legislator introduced s 92EE, which expressly confers review jurisdiction upon the Labour Court in respect of labour related proceedings conducted by arbitrators on grounds that include absence of jurisdiction. The Supreme Court in the above case was not called upon to consider the effect of that amendment because the provision did not exist then.

[65] Those authorities therefore remain apposite in the context of the legal framework obtaining at that time. The present matter must accordingly be determined within the framework of the legislation presently in force. Once that approach is adopted, the applicant's complaint becomes difficult to distinguish or extricate from the review jurisdiction expressly conferred by s 92EE(1)(a). The applicant's complaint was that the arbitrators lacked jurisdiction because the statutory precondition prescribed by s 93(5)(b) was not satisfied. Whether that contention is ultimately correct or incorrect, it remains, in substance, a complaint of absence of jurisdiction on the part of the arbitrators. The applicant cannot avoid that statutory framework merely by invoking Articles 16 and 34 of the Model Law.

[66] At any rate, Mr *Mugogo* could not assertively seek to rely on the aforementioned dictum in the *Zimbabwe Educational, Scientific, Social and Cultural Workers' Union v Welfare Educational Institutions Employers' Association* decision without running the risk of conflating the applicant's case as pleaded. In that case, the parties had subjected themselves to a voluntary arbitration process. Clause 8 of their arbitration agreement provided that:

> "8. The award issued by the Arbitrator(s) shall be final and binding on the parties and shall form an intergral part of the Collective Bargaining Agreement for the Welfare and Educational Institutions – except Independent Hospitals and International and Local Humanitarian NGOs".

[67] The respondent was dissatisfied with the award and sought to appeal against it. The Supreme Court determined that the procedure adopted by the respondent was irregular. Neither the Labour Act nor the Arbitration Act had a provision granting a litigant in voluntary arbitration proceedings a right of appeal against an arbitral award granted in those proceedings. In any case the parties had agreed that the award would be final. Allowing a party to appeal against it would defeat the whole purpose of the arbitration agreement. It was in that connexion that the court determined that voluntary arbitration proceedings could not

thus be subjected to either an appeal or review under the Labour Act. They were governed by the Arbitration Act.

[68] What however distinguishes the present matter from the *Zimbabwe Educational Scientific Social and Cultural Workers Union* matter is that in that matter there was no dispute about the arbitrator's jurisdiction with the parties having agreed to submit themselves to voluntary arbitration. In the present case, the applicant denies that it subjected itself to voluntary arbitration. That is the nub of its challenge to the jurisdiction of the arbitrators. The applicant cannot therefore in one breath deny having subjected itself to voluntary arbitration, while at the same time seeking to reap the fruits associated with the outcome of an award borne out of a voluntary arbitration process. That would be irregular.

[69] Accordingly, the court is satisfied that the present application is, in substance, a challenge to the jurisdiction assumed by arbitrators acting under the statutory dispute-resolution procedures established by the Labour Act. Such a challenge falls within the exclusive review jurisdiction conferred upon the Labour Court by s 92EE of the Labour Act. This court therefore lacks jurisdiction to entertain the application. Having reached that conclusion, it is unnecessary to consider the merits of the matter.

Costs

[70] Although costs ordinarily follow the event, this application raised an important jurisdictional question concerning the interaction between the Labour Act and the Arbitration Act. The applicant cannot be condemned for approaching this court to seek clarity on this very important issue. In the circumstances, it is befitting for this court to order that each party bears its own costs.

Resultantly, it is ordered that:

1. The application for the setting aside of an award is hereby struck off the roll for lack of jurisdiction on the part of the court.
2. Each party shall bear its own costs of suit.

MUSITHU J:……

Mafongoya and Matapura Law Practice, legal practitioners for the applicant
Lawman Law Chambers, legal practitioners for the first respondent